

HOUSE No. 5171

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia A. Duffy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act removing the Treasurer as Acting Mayor in the Holyoke Charter.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>2/18/2026</i>

HOUSE No. 5171

By Representative Duffy of Holyoke, a petition (accompanied by bill, House, No. 5171) of Patricia A. Duffy (with the approval of the mayor and city council) for legislation to remove the treasurer as acting mayor in the city of Holyoke. Municipalities and Regional Government.
[Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act removing the Treasurer as Acting Mayor in the Holyoke Charter.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 27 of the City of Holyoke Charter shall be amended by deleting the
2 paragraph following the heading in total and replacing it with the following:

3 “Whenever by reason of sickness or other cause the mayor shall be unable to perform the
4 duties of the office, the mayor may designate, by writing filed in the office of the city clerk, the
5 city clerk, to act as mayor, or in case of the failure of the mayor to make such designation, said
6 city clerk shall perform shall act as mayor for the duration of the mayor’s absence due to said
7 inability to perform. The city clerk shall, during the continuance of such inability to perform,
8 have all the rights and powers of mayor, except that the city clerk shall not, when so acting, have
9 the power of removal, unless thereto in any instance authorized by vote of the city council, nor
10 any power of appointment, unless such inability to perform by the mayor has continued for a
11 period of thirty days, and then, subject to the approval of the city council, nor power to approve
12 or disapprove any ordinance, order, resolution or vote until no earlier than twenty-four hours of

13 the time when it would take effect, without the approval of the mayor. In the event that the city
14 clerk shall be unable to perform the above duties, then the mayor may designate the city council
15 president to act as mayor and perform said duties, subject to the aforementioned restrictions, or
16 in case of the failure of the mayor to make such designation, said city council president shall
17 perform shall act as mayor for the duration of the mayor's absence due to said inability to
18 perform, subject to the aforementioned restrictions. In case of such inability to perform by the
19 mayor continuing for a period exceeding sixty days, the city council may at any time after the
20 expiration of that period declare a vacancy to exist in the office of mayor."

21 SECTION 2: So much of Chapter 438 of the Acts of 1896 and Chapter 327 of the Acts of
22 1936 and acts in amendment thereof and addition thereto, as is inconsistent with this act, is
23 hereby repealed.

24 SECTION 3: The General Court may make clerical or editorial changes of form only to
25 the bill, unless the Mayor and City Council approve amendments before enactment by the
26 General Court. The Mayor and City Council are hereby authorized to approve amendments
27 which shall be within the scope of the general public objectives of this petition.

28 SECTION 4: This act shall take effect immediately upon passage.